

TRUE COPY

184

R. A. P. RANAWAKA
 නාගරික සංවර්ධන, ජල සැපයීම සහ නිවස සහතික
 නகர அபிவிருத்தி, நீர்வரையறை மற்றும் வீடமைப்பு வசதிகள் அமைச்சு
 MINISTRY OF URBAN DEVELOPMENT, WATER SUPPLY AND HOUSING FACILITIES
 Wattagedara Road, Maharagama

62(1)

දුරකථන / தொலைபேசி Telephone
 23770111, 2377631-3
 2373644, 2373647
 2373649, 2376333
 2377200



නාගරික සංවර්ධන අධිකාරිය
 நகர அபிவிருத்தி அதிகாரசபை
 Urban Development Authority

වෙබ් අඩවි / இணையத்தளம் Web Site: www.uda.gov.lk
 ලිපිනය / இலங்கை Post: 2378637

6, 7 හා 9 වන මහල, පළමු මහල, පළමු මහල
 6, 7 மற்றும் 9 ஆம் மாடிகள் செதிரியாப்பத்திமுள்ளை
 6, 7 & 9 Floors sethsiripsya, Battaramulla

My No. DDG/P/01/11
 02nd day of March, 2020.



Planning Circular No. 29

Mayer / Municipal Commissioner,
 Chairman / Secretary,
 Municipal Council / Urban Council / Pradeshiya Sabha

Maharagama

Re-Delegation of Powers to all Local Authorities under Section 23 (5) of the UDA Act No. 41 of 1978 as amended by Act. No. 4 of 1982 and No. 44 of 1984 respectively for the Municipal Councils, Urban Councils and Pradeshiya Sabhas declared under Section 3 of the said Law.

The prevailing Circulars bearing number DDG/P/01/11 dated 08/02/2017 shall be rescinded with immediate effect by virtue of the Circular dated 01/03/2020 without prejudice to the main facts and related facts stipulated in the Circular No. 27 dated 13/12/2017 thereunder. Provided however, this circular shall have no retrospective effect to any activities or anything incidental thereto engaged in or initiated prior to the execution of this circular on 01/03/2020 where its completion occurs after the date of execution of this circular.

Without prejudice to anything any activities or anything incidental thereto engaged in or initiated previously under the prevailing circulars, the Board of Management of the Urban Development Authority at the meeting No. 01/2020 held on 30/01/2020 had taken a decision in pursuance with the directive given by the Hon. Minister in-charge of the subject of Urban Development, Water Supply & Housing Facilities to re-delegate to Local Authorities all powers, duties and functions pertaining to Planning within any area declared under Section 3 to be an urban development area, by virtue of Section 25(3) of the UDA (Amendments) Act No. 4 of 1982 same and except such powers, duties and functions stipulated hereunder ;

1.
 - 1.1 Issuance of Preliminary Planning Clearance for all developments
 - 1.2 Processing of Building Applications and issuance of building permits for all developments comprising of 05 floors (G+4) - (intermediate height) and above.

WCC
 ලියන UDA නැගෙන ලේ...
 කොට 10's දැක්වෙන...

R. A. P. RANAWAKA
 Attorney-at-Law, Notary Public
 & Commissioner for Oaths
 130, Wattagedara Road
 Maharagama

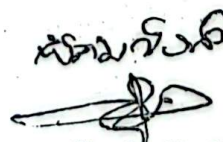
- 640
(3200)
- 1.3 Processing of Certificate of Conformity and issuance of Certificate of Conformity for all developments comprising of 05 floors (G+4) - (intermediate height) and above.
 - 1.4 Processing of Approvals for Sub-Divisions (Land sub-division and the development of land plots) within the limits of the Municipal Council or Urban Council areas that exceed a land extent of 1 Acre.
 - 1.5 Processing of applications and issuance of permits for 'Change of Use'.
 - 1.6 Approvals for Special Projects. / development activities which are identified within working Identified important locations by UDA.
 - 1.7 Processing of Building Applications and issuance of building permits for developments within the 'Buffer Zones' of the expressways
 - 1.8 Processing of Building Applications and issuance of building permits for developments within areas identified as important for conservation by the Department of Coast Conservation & Coastal Resource Management.
 - 1.9 Processing of Building Applications and issuance of building permits for developments within 'Landslide Prone Areas' identified by the National Building Research Organization.
 - 1.10 Processing of Building Applications and issuance of building permits for developments that are referred by the Sri Lanka Tourism Development Authority
 - 1.11 Processing of applications for developments approved by the Board of Investment.

Notwithstanding anything to the contrary stated in Sub Clause 1.4 herein, 10% of such land plots exceeding 1 Hectare reserved for public open spaces for the advancement of recreational activities under the Sub Division of lands by virtue of planning and development provisions shall be vested with the respective Municipal Councils, Urban Councils and Pradeshiya Sabhas.

The respective Local Authority or any officer authorized by such local authority shall be bound to exercise due care and diligence in performing and discharging such powers, duties and functions pertaining to planning within any development area empowered to the Local Authority, subject to the direction, supervision and control of the Authority.

Notwithstanding anything to the contrary stated herein or elsewhere, any such activities or anything incidental thereto engaged in or initiated by virtue of the Circulars bearing No. DDG/P/01/11 dated 08/02/2017 and No. 27 dated 13/12/2017 prior to the validity and enforceability of this circular or its execution shall have no retrospective effect with the execution of this circular and shall under no circumstance be prejudiced.

The applications received to the UDA prior to 01/03/2020 shall be processed by the same without prejudice to the directions of this Circular.

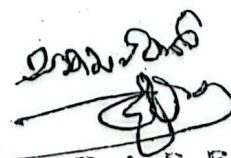


Page 2 of 5

R. A. P. RANAWAKA
Attorney-at-Law, Notary Public
& Commissioner for Oaths
13, Wathagadara Road

625(1)

25. Director (Colombo Metro Region), Urban Development Authority - f.i.pls.
26. Director - Province (Western, Northern, North - Central, - f.i.pls.
Eastern, Uva, Central, North Western, Sabaragamuwa,
Southern), Urban Development Authority.
27. Head of All District Offices, Urban Development Authority - f.i.pls.



Page 4 of 5

R. A. P. RANAWAKA
Attorney-at-Law, Notary Public
& Commissioner for Oaths
130th, Wathagadara Road
Maharagama

TRUE COPY

R. A. P. RANAWAKA, JPOM
Attorney-at-Law, Notary Public
Commissioner for Oaths, Company Secretary
144/03, Mihindu Mawatha,
Wattegedara Road, Mahanagaram

GUIDELINES

The code of instructions given herein shall govern and regulate the Circular associated with the delegation of powers, duties and functions to Local Authorities by virtue of *Section 25(3)* of the UDA (Amendment) Act No. 4 of 1982, in respect of the aspects of planning within any urban development area declared as such under Section 3 of the UDA Act No. 41 of 1978 and the Local Authorities shall be bound to exercise, perform and discharge such delegated powers, duties and functions in accordance with the discretion, supervision and control of the UDA whilst giving effect to the guidelines illustrated herein.

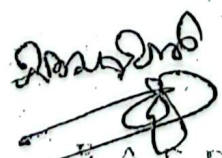
The guidelines mentioned hereunder shall apply to the said Circular where the Authority deems fit and necessary;

- i. It is mandatory that the Local Authorities governed under the said Circular entertains its preliminary procedures electronically via an online system, in pursuance with the coordination and directions of the UDA.
- ii. For the forgoing purpose, Local Authorities shall be permitted a period of 6 months, within which period it may upgrade the online registration system, and failing which, all or any such powers, duties and functions declared under *Section 25(3)* of UDA Law pertaining to the planning aspect of developments shall be regressed to the UDA.
- iii. The Local Authority shall take all necessary steps within its power to grant approvals to building applications and survey plans that are submitted online or otherwise, within not more than 14 working days.
- iv. The Local Authority shall take all necessary steps within its power to issue a Certificate of Conformity (COC) within not more than 7 working days from the date of acknowledging receipt of the application.
- v. It is mandatory for all Pradeshiya Sabhas, Urban Councils and Municipal Councils to strictly comply with the general formats issued by the UDA pertaining to the Deed of Transfer/Conveyance so taken up over the subject matter of the land plots under sub divisions.
- vi. All charges, levies or any other fee recovered by the Local Authorities by virtue of Circular No. 15 dated 18/11/1993 shall be remitted directly to the account created in the name of 'Urban Development' maintained by Local Authorities.
- vii. In the event the Local Authorities fail to comply or be bound by the guidelines imposed by the UDA, the UDA shall have the power and unfettered discretion to cancel forthwith one or any of the approvals granted by such Local Authority at any point of time, without any recourse, by virtue of the powers exercised under *Section 25(3)*.

The UDA contemplates that the Local Authorities shall exercise due care and diligence in performing and discharging the duties power and functions, to the satisfaction of the UDA and in line with the principles of good governance and shall take all steps to expedite the tasks where practicable and necessary. The UDA shall render advice and directions so required for the purpose of giving effect to the powers, duties and functions set out herein.


Chairman,
Urban Development Authority.

Page 5 of 5


R. A. P. RANAWAKA
Attorney-at-Law, Notary Public
Commissioner for Oaths
144/03, Mihindu Mawatha,
Wattegedara Road, Mahanagaram